

Website Design & Development Agreement

Grow Package · Terms version 2026-09-16

This Agreement is entered into as of the Effective Date below, between Reactive ("Developer") and the individual or business identified below ("Client"). The terms below are the same terms published at reactiveweb.dev/terms as of version 2026-09-16 (September 16, 2026).

EFFECTIVE DATE	_____
CLIENT NAME	_____
BUSINESS NAME	_____
CLIENT EMAIL	_____
PROJECT / SITE	_____
TARGET LAUNCH DATE	_____
DEVELOPER	Reactive
DEVELOPER EMAIL	rawd@reactiveweb.dev
DEVELOPER PHONE	+1 (949) 883-0458
SELECTED PACKAGE	Grow — \$1,500 one-time, \$34/month

1. SCOPE OF SERVICES

Client is purchasing one of the packages described on the Packages page. Each package includes exactly the pages, features, revision rounds, and post-launch support period listed for that package below. Nothing outside that list is included, regardless of anything discussed informally before this Agreement is accepted.

Grow package — \$1,500 one-time, plus \$34/month hosting & upkeep

- Up to 6 pages
- Custom React build, no templates
- Mobile-responsive design
- Contact form + booking or inquiry form
- On-page SEO + analytics setup
- Basic content editing so you're not locked out
- 4 rounds of revisions
- 1 month of post-launch support

2. OUT-OF-SCOPE WORK

Any request beyond the included pages, features, or revision rounds for Client's package — including additional pages, additional revision rounds, new features, or an expanded scope from what was described at the time of purchase — is Out-of-Scope Work. Out-of-Scope Work is not covered by fees already paid. It will be scoped, quoted, and confirmed in writing, and requires a new agreement and separate payment before Developer begins that work.

3. FEES & PAYMENT

The one-time setup fee for Client's selected package is due in full before work begins. The monthly hosting & upkeep fee is billed automatically, beginning when the project starts, and continues monthly until cancelled by either party with at least 30 days' written notice. Fees already paid are non-refundable once work has begun, except where required by applicable law.

4. CLIENT RESPONSIBILITIES

Client agrees to provide timely feedback, content, and access (e.g. accounts, assets, or approvals) reasonably needed for Developer to complete the project. Delays caused by Client in providing these may delay delivery and do not extend any post-launch support period.

5. OWNERSHIP OF DELIVERABLES

Upon receipt of full payment for the applicable package, Developer assigns to Client ownership of the final custom code created specifically for Client's project ("Deliverables"). This does not include: (a) Developer's own general-purpose tools, boilerplate, or frameworks used to build the Deliverables, which Developer may reuse on other projects; (b) third-party software, libraries, plugins, fonts, or stock assets, which remain subject to their own licenses; or (c) the license Developer retains under Section 6 below.

6. PORTFOLIO & OPEN-SOURCE LICENSE

Developer retains the right to (a) display the delivered site and a general description of the project in Developer's professional portfolio, and (b) publish the project's source code publicly on Developer's GitHub (or a successor code-hosting platform) for portfolio and open-source purposes.

This license does not extend to, and Developer will not publish: Client's private API keys, credentials, or configuration secrets; Client's customer, employee, or business contact data; content Client has identified in writing as confidential; or any material Client does not have the right to make public. Client may request in writing, before project completion, that the source code not be published publicly, and Developer will accommodate reasonable requests.

7. CONFIDENTIALITY

Each party agrees to keep the other's non-public business information confidential and to use it only to perform this Agreement, except for the license Developer retains under Section 6.

8. INDEPENDENT CONTRACTOR

Developer is an independent contractor, not an employee, partner, or agent of Client. Developer is solely responsible for his own taxes, insurance, and business expenses in his own jurisdiction. Client is not responsible for withholding taxes on Developer's behalf, and Developer is not obligated to provide tax documentation to Client. Developer may, at his discretion, provide standard tax forms (e.g. IRS Form W-8BEN) if reasonably requested.

9. WARRANTIES & DISCLAIMER

Developer will perform services in a professional manner consistent with industry standards. Except as expressly stated in this Agreement, Deliverables are provided "as is," without warranties of any kind, express or implied, including fitness for a particular purpose, merchantability, or non-infringement of third-party content supplied by Client.

10. LIMITATION OF LIABILITY

To the maximum extent permitted by law, Developer's total liability arising out of this Agreement will not exceed the fees Client actually paid to Developer in the three (3) months preceding the claim. Developer is not liable for indirect, incidental, consequential, or punitive damages, including lost profits or lost data, even if advised of the possibility of such damages.

11. INDEMNIFICATION

Client agrees to indemnify and hold Developer harmless from claims, damages, or expenses (including reasonable attorney's fees) arising from: (a) content or materials Client provides for use on the site, including any claim that such content infringes a third party's rights; or (b) Client's use of the Deliverables in violation of this Agreement or applicable law.

12. TERMINATION

Either party may terminate this Agreement with written notice. If Client terminates before a package is complete, fees paid for work already performed are non-refundable, and Developer will deliver the work completed to date on request. If Developer terminates, Developer will refund fees paid for work not yet performed. Monthly hosting & upkeep may be cancelled by either party with 30 days' notice.

13. FORCE MAJEURE

Neither party is liable for delay or failure to perform caused by events beyond its reasonable control, including natural disasters, internet or infrastructure outages, or other circumstances that could not reasonably be planned for.

14. GOVERNING LAW & DISPUTES

This Agreement is governed by the laws of the State of California, without regard to conflict-of-laws principles. The parties will first attempt to resolve any dispute through good-faith negotiation. If unresolved within 30 days, either party may bring the dispute in the state or federal courts located in California, and each party consents to the personal jurisdiction of those courts.

15. GENERAL

This Agreement is the entire agreement between the parties regarding the project and supersedes prior discussions on the same subject. If any provision is found unenforceable, the remaining provisions stay in effect. This Agreement may only be amended in writing signed or acknowledged by both parties. Notices may be sent by email to the addresses the parties use to arrange and confirm the project.

16. ACCEPTANCE

Client accepts this Agreement by either (a) checking "I agree" and completing payment through Developer's website, or (b) signing a copy of this Agreement. Either action confirms that Client has read and understood this Agreement, including the package-specific scope in Section 1, and agrees to be bound by it.

Where acceptance takes place online, Developer's record of the transaction (subscription ID and timestamp) constitutes Client's electronic signature and acceptance under the U.S. Electronic Signatures in Global and National Commerce Act (E-SIGN Act) and other applicable electronic transaction laws. This Agreement may be signed electronically and in counterparts, each of which is deemed an original.

HOW THIS AGREEMENT IS ACCEPTED

There is nothing to sign. This Agreement takes effect when Client completes payment for the Grow package through reactiveweb.dev, in the manner set out in Section 16. Completing that payment confirms that Client has read and understood this Agreement, including the package scope in Section 1.

Developer's record of that transaction — the PayPal subscription ID and its timestamp — is the record of acceptance, together with the client ID issued to Client by email at that time.